

NONLAWYER DISCLOSURE

Instructions to Licensee: Before you begin to complete the next form, you must give this nonlawyer disclosure to the landlord or tenant for whom you are filling in the blanks.

_____ told me that he/she is a nonlawyer and may not give legal advice, cannot tell me what my rights or remedies are, cannot tell me how to testify in court, and cannot represent me in court.

Rule 10-2.1(b) of the Rules Regulating The Florida Bar defines a paralegal as a person who works under the supervision of a member of The Florida Bar. _____ informed me that he/she is not a paralegal as defined by the rule and cannot call himself/herself a paralegal.

_____ told me that he/she may only type the factual information provided by me in writing into the blanks on the form. Except for typing, _____ may not tell me what to put in the form and may not complete the form for me.

Landlord or Tenant:

[X] I can read English.

[] I cannot read English but this notice was read to me by _____ in _____ which I understand.

Landlord or Tenant Signature

Licensee Signature

Landlord or Tenant Signature (2nd)

Date

RESIDENTIAL LEASE FOR APARTMENT OR UNIT IN MULTI-FAMILY RENTAL HOUSING

(Including a Mobile Home, Condominium, or Cooperative — Not to Exceed One Year)

WARNING: IT IS VERY IMPORTANT TO READ ALL OF THE LEASE CAREFULLY. THE LEASE IMPOSES IMPORTANT LEGAL OBLIGATIONS. AN ASTERISK (*) OR A BLANK SPACE INDICATES A PROVISION WHERE A CHOICE OR DECISION MUST BE MADE BY THE PARTIES. NO CHANGES OR ADDITIONS TO THIS FORM MAY BE MADE UNLESS A LAWYER IS CONSULTED.

I. TERMS AND PARTIES.

This is a lease (the "Lease") for a period of _____ months (the "Lease Term"), beginning _____ and ending _____, between _____ ("Landlord") and _____ ("Tenant").

Landlord's E-mail Address: _____

Landlord's Telephone Number: _____

Tenant's E-mail Address: _____

Tenant's Telephone Number: _____

II. PROPERTY RENTED.

Landlord leases to Tenant apartment or unit no. _____ in the building located at _____ known as _____, _____, Florida _____, together with the following furniture and appliances: _____

(List all furniture and appliances. If none, write "none.") (The property leased, including furniture and appliances, is called "the Premises.")

III. COMMON AREAS.

Landlord grants to Tenant permission to use, during the Lease Term, along with others, the common areas of the building and the development of which the Premises are a part.

IV. RENT PAYMENTS AND CHARGES.

Tenant shall pay rent for the Premises in installments of _____ each on the _____ day of each _____.

Tax per installment: _____ Total Lease Payment (rent + tax): _____

☐ Unless checked, Lease Payments must be paid in advance beginning _____.
Prorate from _____ through _____ in the amount of _____
due on _____.

V. DEPOSITS, ADVANCE RENT, AND LATE CHARGES.

In addition to the Lease Payments described above, Tenant shall pay the following (check only those that apply):

- ☐ A security deposit of _____ to be paid upon signing the Lease.
☐ Advance rent of _____ for the Rental Installment Period(s) of _____
to be paid upon signing the Lease.
☐ A pet deposit of _____ to be paid upon signing the Lease.
☐ A late charge of _____ for each Lease Payment made more than _____
days after due.
☐ A bad check fee of _____ (not to exceed \$20.00 or 5% of the Lease Payment, whichever is
greater).
☐ Other: _____
☐ Other: _____

VI. SECURITY DEPOSITS AND ADVANCE RENT.

If Tenant has paid a security deposit or advance rent, Landlord shall hold the money in a separate interest-bearing or non-interest-bearing account in a Florida banking institution for the benefit of Tenant, or post a surety bond as allowed by law. If Landlord rents 5 or more dwelling units, Landlord must notify Tenant in writing within 30 days of payment of the manner in which such money is being held.

VII. NOTICES.

_____ is Landlord's Agent. All notices to Landlord and all Lease Payments must be sent to Landlord's Agent at _____.

Unless Landlord gives Tenant written notice of a change, all notices to Landlord shall be given by certified mail, return receipt requested, or by hand delivery. Any notice to Tenant shall be given by certified mail, return receipt requested, or delivered to Tenant at the Premises.

VIII. USE OF PREMISES.

Tenant shall use the Premises only for residential purposes and shall obey all laws and restrictions that apply to the Premises. If the Premises are located in a condominium or cooperative, the Lease is subject to all governing documents.

Occasional overnight guests permitted (not more than _____ nights in any calendar month).
Landlord's written approval required for any other occupant.

Unless a pet deposit has been paid, Tenant may not keep pets without Landlord's written approval. No smoking in the Premises unless otherwise agreed in writing. Tenant may not make alterations without Landlord's written consent.

IX. MAINTENANCE.

A. Landlord's Required Maintenance. Landlord shall comply with applicable building, housing, and health codes. Landlord shall maintain roofs, porches, windows, exterior walls, screens, foundations, floors, structural components, steps, and keep plumbing in reasonable working order.

B. Elective Maintenance. The following items shall be maintained by the party indicated:

- ☐ Landlord ☐ Tenant Smoke Detectors
☐ Landlord ☐ Tenant Extermination of rats, mice, roaches, ants, wood-destroying organisms, and bedbugs
☐ Landlord ☐ Tenant Locks and keys
☐ Landlord ☐ Tenant Clean and safe condition of outside areas
☐ Landlord ☐ Tenant Garbage removal and outside garbage receptacles
☐ Landlord ☐ Tenant Running water
☐ Landlord ☐ Tenant Hot water
☐ Landlord ☐ Tenant Lawn
☐ Landlord ☐ Tenant Heat
☐ Landlord ☐ Tenant Air conditioning
☐ Landlord ☐ Tenant Furniture
☐ Landlord ☐ Tenant Appliances
☐ Landlord ☐ Tenant Fixtures

☐ Landlord ☐ Tenant Pool (including filters, machinery, and equipment)

☐ Landlord ☐ Tenant Heating and air conditioning filters

☐ Landlord ☐ Tenant Other: _____

Major maintenance/replacement threshold: _____

C. Tenant's Required Maintenance. Tenant shall: (1) comply with applicable building, housing, and health codes; (2) keep the Premises clean and sanitary; (3) remove all garbage in a clean and sanitary manner; (4) keep all plumbing fixtures clean, sanitary, and in repair; and (5) use all facilities and appliances in a reasonable manner.

X. UTILITIES.

Tenant shall pay all charges for utilities during the Lease Term except _____, which Landlord agrees to provide at Landlord's expense.

XI. SERVICEMEMBER.

If Tenant is a member of the United States Armed Forces on active duty or state active duty or a member of the Florida National Guard or United States Reserve Forces, the Tenant has rights to terminate the Lease as provided in Section 83.682, Florida Statutes.

XII. LANDLORD'S ACCESS TO PREMISES.

Landlord or Landlord's Agent may enter the Premises: (A) at any time for protection or preservation; (B) after reasonable notice at reasonable times for repairs; (C) to inspect, make repairs, or exhibit the Premises with Tenant's consent, in emergency, when Tenant unreasonably withholds consent, or if Tenant is absent for at least one-half a Rental Installment Period.

XIII. PROHIBITED ACTS BY LANDLORD.

Landlord is prohibited from taking certain actions as described in Section 83.67, Florida Statutes.

XIV. CASUALTY DAMAGE.

If the Premises are damaged or destroyed other than by wrongful or negligent acts of Tenant so that the use of the Premises is substantially impaired, Tenant may terminate the Lease within 30 days after the damage or destruction and Tenant will immediately vacate the Premises.

XV. DEFAULTS/REMEDIES.

Should a party to the Lease fail to fulfill their responsibilities under the Lease, refer to Part II, Chapter 83, Florida Residential Landlord and Tenant Act, which contains information on defaults and remedies. A copy of the current version of this Act is attached to the Lease.

XVI. ASSIGNMENT AND SUBLEASING.

Tenant may not assign the Lease or sublease all or any part of the Premises without first obtaining Landlord's written approval and consent.

XVII. RISK OF LOSS.

Landlord shall not be liable for any loss by reason of damage, theft, or otherwise to the contents, belongings, and personal effects of the Tenant, except for loss caused by Landlord's own negligence or willful conduct.

XVIII. SUBORDINATION.

The Lease is automatically subordinate to the lien of any mortgage encumbering the fee title to the Premises.

XIX. LIENS.

The interest of the Landlord shall not be subject to liens for improvements by the Tenant as provided in Section 713.10, Florida Statutes.

XX. APPROVAL CONTINGENCY.

If applicable, the Lease is conditioned upon approval of Tenant by the association that governs the Premises. Any application fee required by an association shall be paid by ☐ Landlord ☐ Tenant. If such approval is not obtained prior to commencement of Lease Term, either party may terminate the Lease by written notice. Association security deposit shall be paid by ☐ Landlord ☐ Tenant.

XXI. RENEWAL/EXTENSION.

The Lease can be renewed or extended only by a written agreement signed by both Landlord and Tenant, but in no event may the total Lease Term exceed one year. A new lease is required for each year.

XXII. LEAD-BASED PAINT.

Check and complete if the dwelling was built before January 1, 1978.

Lead Warning Statement: Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and

pregnant women. Before renting pre-1978 housing, Lessors must disclose the presence of known lead-based paint and/or lead-based paint hazards in the dwelling.

Lessor's Disclosure (initial):

_____ (a) Presence of lead-based paint or lead-based paint hazards:

(i) _____ Known lead-based paint and/or lead-based paint hazards are present in the housing (explain):

_____ (ii) ☐ Lessor has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.

_____ (b) Records and reports available to the Lessor:

(i) _____ Lessor has provided the Lessee with all available records and reports (list documents):

_____ (ii) ☐ Lessor has no reports or records pertaining to lead-based paint and/or lead-based paint hazards.

_____ (c) Lessee has received copies of all information listed above.

_____ (d) Lessee has received the pamphlet Protect Your Family From Lead in Your Home.

_____ (e) Agent has informed the Lessor of obligations under 42 U.S.C. 4852d.

Certification of Accuracy — The following parties certify that the information provided is true and accurate.

Lessor's Signature

Date

Lessor's Signature (2nd)

Date

Lessee's Signature

Date

Lessee's Signature (2nd)

Date

Agent's Signature

Date

XXIII. ATTORNEYS' FEES.

In any lawsuit brought to enforce the Lease or under applicable law, the party in whose favor a judgment or decree has been rendered may recover its reasonable court costs, including attorneys' fees, from the non-prevailing party.

XXIV. MISCELLANEOUS.

Time is of the essence. The Lease shall be binding upon heirs, personal representatives, successors, and permitted assigns. The agreements in the Lease set forth the complete understanding of the parties. All questions shall be determined pursuant to Florida law. RADON GAS DISCLOSURE: Radon is a naturally occurring radioactive gas that may present health risks. Additional information may be obtained from your county health department.

XXV. TENANT'S PERSONAL PROPERTY.

TENANT MUST INITIAL HERE: _____ BY SIGNING THIS RENTAL AGREEMENT, THE TENANT AGREES THAT UPON SURRENDER, ABANDONMENT, OR RECOVERY OF POSSESSION OF THE DWELLING UNIT DUE TO THE DEATH OF THE LAST REMAINING TENANT, AS PROVIDED BY CHAPTER 83, FLORIDA STATUTES, THE LANDLORD SHALL NOT BE LIABLE OR RESPONSIBLE FOR STORAGE OR DISPOSITION OF THE TENANT'S PERSONAL PROPERTY.

The Lease has been executed by the parties on the dates indicated below.

Landlord's Signature

Date

Landlord's Signature (2nd)

Date

Tenant's Signature

Date

Tenant's Signature (2nd)

Date

This form was completed with the assistance of:

Name of Individual:

Name of Business:

Address:

Telephone Number:

Copy of Current Version of Florida Residential Landlord and Tenant Act, Part II, Chapter 83, Florida Statutes to Be Attached.

EARLY TERMINATION FEE / LIQUIDATED DAMAGES ADDENDUM

[] I agree, as provided in the rental agreement, to pay _____ (an amount that does not exceed two months' rent) as liquidated damages or an early termination fee if I elect to terminate the rental agreement, and the landlord waives the right to seek additional rent beyond the month in which the landlord retakes possession.

[] I do not agree to liquidated damages or an early termination fee, and I acknowledge that the landlord may seek damages as provided by law.

Landlord's Signature

Date

Landlord's Signature (2nd)

Date

Tenant's Signature

Date

Tenant's Signature (2nd)

Date